

Icici Bank Ltd vs Narsingh on 9 January, 2024

IN THE COURT OF CIVIL JUDGE-06, (CENTRAL), TIS
HAZARI COURTS, DELHI

DATE OF INSTT: 07.08.2018

CS SCJ No.

: 2271/18

CNR NO.

: DLCT03-005054-2018

DATE OF DECISION : 09.01.2024

PRESIDING OFFICER: Mr. DEV SAROHA

ICICI Bank Limited
Through its Authorized Representative
Sh. Mohit Grover
Having its Registered office:
At Landmark Race Course Circle,
Vadodara-390007

And Having its Branch Office At:
E Block, Videocon Tower,
Jhandewalan Extn., New Delhi - 110055.
Through its Authorised Representative
Sh. Mohit Grover.

Versus

Nar Singh,
S/o Sh. Lal Bachan,
R/o H.No.124, Haddo Mohalla Madanpur,
Khadar Sarita Vihar,
Near Asharam Public School,
New Delhi-110007.

Also At:
Orient Craft Ltd
F 8, Okhla Industrial Area
Phase -1, Near ESI Hospital
Delhi-110020

.....Plaintiff

.....Defendant

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(DEV SAROHA)
CJ-06(C)/THC/Del

Argued by:

(a) Mr. Prashant Kumar and Ms. Himani Aggarwal, counsels for plaintiff.

Note :Defendant is already proceeded against ex-parte vide order dated
25.02.2023

SUIT FOR RECOVERY OF Rs. 59,533/- (RUPEES FIFTY NINE
THOUSAND FIVE HUNDRED THIRTY THREE) ALONG WITH
INTEREST @ 23.28% P.A.

JUDGMENT:

1. Present suit for recovery of Rs. 59,533/- has been filed by the plaintiff bank through its AR Mr. Mohit Grover against the defendant with the averments that :

" The plaintiff bank is a Banking Corporation incorporated under the Indian Companies Act, 1956, having its Registered Office at Landmark, Race Course Circle, Vadodara- 390007 and having its Branch Office at E-Block, Videocon Tower, Jhandewalan Extension, New Delhi. The defendant had approached the plaintiff bank for grant of a vehicle loan for the purpose of purchasing the vehicle namely Splendor Plus and entered into a loan agreement / Credit Facility Application Form. The defendant executed Credit Facility Application, unattested deed of hypothecation and irrevocable power of attorney in favour of the plaintiff bank. Keeping in view the request of the defendant, the plaintiff bank sanctioned a loan of Rs. 49,000/- and the said amount was disbursed to the plaintiff in pursuance of the loan agreement for the purchase of a vehicle make i.e. Splendor Plus bearing registration no. DL-3SDW-6369 on 18.12.2017. The defendant agreed to repay the said loan in 24 equated monthly installments of Rs.2,573/- each with interest @ 23.28%. After the receipt of the loan amount, the CS SCJ 2271/18 ICICI Bank Limited Vs. Nar Singh Page No. 2 of 6 (DEV SAROHA) CJ-06(C)/THC/Delhi defendant failed to adhere to the financial discipline of the repayment of loan amount and the defendant failed to pay the EMI's and had defaulted for repayment of Rs.18,011/-(7 EMIs) and late payment charges and cheque bouncing charges of Rs.5026/- totalling to Rs.23.037/- besides future monthly installment of Rs.43,100.80/- as on 23.07.2018. When after several requests and reminders to the defendant for payment of loan amount, the plaintiff bank was compelled to serve notice dated 15.03.2018 to the defendant recalling/ foreclosing the entire loan agreement but despite receipt of the notice, the defendant neither cared to reply to the said notice nor made any effort to repay the outstanding amount. As per the statement of accounts dated 23.07.2018 maintained by the plaintiff bank, the defendant is liable to pay a sum of Rs. 59,533/- towards the loan amount on the date of foreclosure. Considering, the persistent defaults of the defendant in paying the EMI's, the plaintiff bank was constrained to file the present suit for the recovery of Rs.59,533/- from the defendant."

2. Summons for settlement of issues were sent to the defendant by ordinary process as well as by registered post /AD. However, the same were received back with the report that the address of the defendant could not be traced. The defendant was then service through publication and hence, the defendant was deemed to be served on 28.08.2022 and vide order dated 25.02.2023 as no one appeared for the defendant accordingly, right to file Written Statement was closed by the Court order and defendant was proceeded Ex-parte.

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3. Matter was then fixed for ex-parte plaintiff's evidence. It examined its AR Shri Mohit Grover as PW1 whose affidavit of evidence is Ex.PW1/A, wherein he has reiterated all the averments made in

the plaint. The same are not repeated here for the sake of brevity. PW1 relied on and exhibited the following documents:-

Ex.PW1/1 : Copy of Power of Attorney(OSR).

Ex.PW1/2 : Preliminary Credit Facility Application Form.

Ex.PW1/3 : Original Credit Facility Application form alongwith terms and conditions of loan.

Ex.PW1/4 : Original Deed of Hypothecation.

Ex.PW1/5 : Original disbursal memo and other documents.

Ex.PW1/6 : Copy of Loan Recall Notice dated 15.03.2018.

Mark X	: Postal Receipt.
Ex.PW1/7	: Foreclosure and statement of account dated 23.07.2018(colly).
Ex. PW-1/8	: Certificate U/s 65 B of the Indian Evidence Act.
Ex. PW-1/9	: Certificate U/s 2 A of Banker Book of Evidence Act 1891

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4. Recording of ex-parte PE was concluded on 05.10.2023.

Thereafter, ex-parte final arguments were advanced by the Ld. counsel for the plaintiff.

5. I have heard the arguments and perused the record.

6. The Loan documents Ex.PW1/2 to Ex.PW1/6, the veracity of which has gone unchallenged established the factum of grant of loan to the defendant. The authenticity and correctness of the Account Statement Ex.PW1/7, which is duly accompanied with certificate under Section 65B of the Indian Evidence Act and certificate U/s 2A of the Banker's Books of Evidence Act, 1891 Ex.PW1/8 and Ex.PW1/9 respectively, has also not been challenged. The testimony of PW1 vide his affidavit on oath Ex.PW1/A is duly supported and corroborated by the documents placed on record. Despite the loan recall notice Ex.PW1/6, the defendant failed to regularize his account thus violating his contractual duty under the loan agreement with the plaintiff.

7. After meticulously perusing the file and evidence of the plaintiff, this court is of the considered opinion that it is clearly established that defendant has not repaid the loan amount. The defendant also did not bother to appear in court or file the written CS SCJ 2271/18 ICICI Bank Limited Vs. Nar Singh Page No. 5 of 6 (DEV SAROHA) CJ-06(C)/THC/Delhi statement therefore, it can be safely presumed that the defendant had no real defence to put forth. The claim of the plaintiff is duly supported by the documents on record which have been clearly proved by the plaintiff. The present suit filed on 07.08.2018 is well within limitation. The loan agreement was executed on 05.12.2017.

8. Accordingly, the suit of the plaintiff is decreed ex-parte with costs against the defendant for the amount of Rs.59,533/- (Rupees Fifty Nine Thousand Five Hundred Thirty Three Only). Pendente lite and future interest @ 9% p.a. (simple interest) is also awarded to the plaintiff bank.

9. Decree sheet be prepared accordingly.

10. File be consigned to record room after due compliance.

Announced in open court.
Dated 09.01.2024

DEV SAROHA
Civil Judge -06 (Central)/THC
Delhi

Note : This judgment contains six pages and each page has been checked and Signed by me.

DEV SAROHA Civil Judge -06 (Central)/THC Delhi/09.01.2024 CS SCJ 2271/18 ICICI Bank Limited Vs. Nar Singh Page No. 6 of 6 (DEV SAROHA) CJ-06(C)/THC/Delhi